



Royal College of Art Act 1968

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ELIZABETH II



1968 CHAPTER x

—An Act to dissolve The Royal College of Art incorporated under the Companies Act, 1948, as a company limited by guarantee and to transfer all the rights, property and liabilities of that college to The Royal College of Art constituted by Royal Charter; and for other purposes.
[30th May 1968]

—WHEREAS—

(1) The School of Design was established in 1837 under the direction of a council appointed by the Board of Trade with the object of teaching the direct application of the arts to manufactures in accordance with the recommendation of the report of a select committee on arts and manufactures:

(2) In 1852 the said school was re-named the Central School of Practical Arts and in 1896 the said school was again re-named The Royal College of Art:

(3) By a Declaration of Trust made by the Honourable Josiah Wedgwood on the 16th March, 1949, the said College was established as a charitable foundation:

(4) On the 13th February, 1951, a company limited by guarantee was incorporated under the Companies Act, 1948, by the name of 1948 c. 38.
The Royal College of Art (hereinafter referred to as “the original college”) and the objects thereof included the taking over and continuance of the said college:

(5) By a scheme made by the Minister of Education under the Charitable Trusts Acts, 1853 to 1925, on the 18th April, 1951,

all land belonging to the said charitable foundation was vested in the original college and it was provided that the property of the said charitable foundation should be administered by the original college in accordance with the provisions of its Memorandum and Articles of Association:

(6) On the petition of the original college Her Majesty on 11th September, 1967, granted a charter constituting and founding a college by the name and style of "The Royal College of Art" (hereinafter referred to as "the College") for the advancement of learning, knowledge and professional competence particularly in the field of fine arts, in the principles and practice of art and design in their relation to industrial and commercial processes and social and other subjects relating thereto through teaching, research and collaboration with industry and commerce:

(7) The council of the original college and the council of the College are desirous and it is expedient that the original college should be incorporated in the College and that all property, rights, privileges and liabilities of the original college should be transferred to and vested in the College as provided by this Act:

(8) It is expedient that the other provisions in this Act should be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title
and com-
mencement.

1.—(1) This Act may be cited as the Royal College of Art Act 1968.

(2) This Act shall come into operation on 1st August, 1968.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Royal College of Art.

Part III.—General.

Interpretation.

3. In this Act, unless the subject or context otherwise requires, the following expressions have the following meanings:—

"the charter" means the charter incorporating the College granted by Her Majesty on 11th September, 1967, and includes any amendment, alteration or addition thereto;

- “ the College ” means The Royal College of Art constituted by the charter;
- “ the original college ” means the Royal College of Art incorporated under the Companies Act, 1948, as a 1948 c. 38. company limited by guarantee and includes the governing body thereof;
- “ the council ” means the council of the College;
- “ the registrar ” means the registrar or other officer performing under the Companies Acts 1948 to 1967 the duty of registration of companies in England.

PART I
—cont.

PART II

ROYAL COLLEGE OF ART

4. (1) On the commencement of this Act, the original college shall by virtue of this Act be dissolved and cease to exist and all property, real and personal, of every description, including things in action, and all rights and privileges of the original college which immediately before the commencement of this Act belonged to or were vested in or exercisable by the original college shall, subject to the provisions of this Act, be by virtue of this Act without any conveyance, transfer or other instrument transferred to, vested in and exercisable by the College for all the estate and interest therein of the original college and shall be applied to the objects and purposes for which the College is incorporated.

Dissolution
of original
college and
transfer of
property to
College.

(2) Any property which by any scheme, deed, will or other instrument or otherwise is held upon trust for any specific foundation or object of or connected with the original college shall, after the said transfer, be held upon trust for and applied as far as possible to the same foundation or object of or connected with the College:

Provided that any such foundation or object may from time to time be varied or added to by deed under the seal of the College which shall have been approved by a special resolution (as defined in the charter) of the council, but so that the funds and investments for the time being allocated to each specific foundation or object shall remain allocated for such specific foundation or object:

Provided also that any such deed of variation or addition shall not be of any validity until the same shall have been submitted to and approved by the Privy Council and a certificate of their approval thereof signed by the clerk of the Privy Council or by any other person authorised by the Privy Council in that behalf shall be endorsed on such deed.

PART II
—cont.

(3) Subject to the provisions of subsection (2) of this section any property held by the original college upon or subject to any trust or trusts (not being a trust or trusts relating to the objects and purposes for which the College is incorporated) shall be held by the College upon or subject to the trust or trusts upon or subject to which such property was held by the original college previously to the transfer.

Transfer of liabilities.

5. On the commencement of this Act all debts and liabilities of the original college shall, by virtue of this Act, be transferred and attached to the College and shall thereafter be discharged and satisfied by the College.

Saving for agreements, deeds, etc.

6. All agreements, awards, contracts, deeds and other instruments which immediately before the commencement of this Act were existing in favour of or against the original college shall continue and may be carried into effect and enforced by or in favour of or against the College to the same extent or in like manner as if the College instead of the original college had been party to or interested in the same respectively.

Construction of bequests, etc., in favour of original college.

7. On and after the commencement of this Act any bequest, gift or trust in favour of or connected with the original college shall be read and have effect as if the College had been named or referred to therein instead of the original college, whether such bequest, gift or trust is made, regulated or constituted by any will, scheme, deed or document or in any other manner, and whether made or executed or taking effect before or after the commencement of this Act.

Saving for actions, etc.

8. All actions and proceedings and causes of action or proceedings which immediately before the commencement of this Act were existing or pending in favour of or against the original college shall continue and may be prosecuted by or against the College to the same extent or in like manner as if the College instead of the original college had been party to or interested in the same respectively.

Transfer of power to appoint or nominate.

9. Any power or right of the original college to appoint or nominate a member of any education authority or of the governing body of any educational, charitable or other institution shall on the commencement of this Act, be transferred to and may be exercised by the College.

Extension of privileges of graduates.

10.—(1) A degree, diploma or other distinction conferred by the College shall qualify for any office or candidature for an office for which an English university degree, diploma or other distinction, as the case may be, qualifies.

(2) A degree, diploma or other distinction conferred by the College shall qualify for any privilege or exemption (being a statutory privilege or exemption or one granted by a public authority or other body including an examining body) for which an English university degree, diploma or other distinction, as the case may be, qualifies.

(3) Where an English university degree, diploma or other distinction qualifies for an office or candidature for an office or for a privilege or exemption only if it is a degree, diploma or other distinction, as the case may be, of a specific kind or if it is conferred only on candidates in a specific faculty or school, references in this section to a degree, diploma or other distinction, as the case may be, conferred by the College shall be construed as references to a degree, diploma or other distinction, as the case may be, of that kind or conferred on candidates in that faculty or school.

(4) References in this section to qualification by an English university degree, diploma or other distinction are references to circumstances where it is not germane to the qualification which university conferred the degree, diploma or other distinction.

PART III

GENERAL

11. The College shall deliver to the registrar a printed copy of this Act, and he shall retain and register the copy delivered and shall strike the name of the original college from the register as from the date on which the Act shall come into operation, and if no such copy is so delivered within three months from the date of the passing of this Act, the College shall incur a fine not exceeding two pounds for every day after the expiration of those three months during which the default continues, and any officer of the College who knowingly and wilfully neglects to secure observance of the requirement of this subsection shall incur the like fine. Every fine under this section shall be recoverable summarily.

12. The costs, charges and expenses preliminary to, and incidental to, the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the College.

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